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File No.: EXP202403482

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 13/03/2023, a complaint was filed with the Spanish Agency for Data Protection against the COMMUNITY OF PROPERTY OWNERS ***COMMUNITY.1 with NIF ***NIF.1 (hereinafter, the respondent party), for a possible breach of the provisions set forth in the personal data protection regulations.

The reasons for the complaint are as follows:

The complainant states that the respondent Community of Property Owners has installed a video intercom at its main entrance that allows for indiscriminate viewing of the public road adjacent to the property where the Community is located, and that this is not contingent upon a prior call for access to the property. It adds that the signage installed indicating a video surveillance area is outdated as it refers to the repealed Organic Law 15/1999 on the Protection of Personal Data.

Along with the complaint, the following documentation was submitted:

- Images captured by the video intercom and of the video surveillance area sign, dated March 2023.
- Videos with real-time recordings from the video intercom, dated March 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 04/04/2023, the complaint was forwarded to the respondent party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 13/04/2024 as evidenced by the acknowledgment of receipt in the file.

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On 11/05/2023, a response was received by this Agency in which the respondent party stated, in summary, that the camera located inside the entrance is fictitious and that the information sign for video surveillance was placed as a deterrent.

Regarding the video intercom, the respondent party indicated that it is located on the wall between the entrance door to the building and the sidewalk, and additionally, the camera of the device “only activates when someone rings the bell from the street panel, does not record images, and remains active for about 30 seconds after the call is made. After that, it turns off and only activates again if the bell is rung again.”

Along with the response, the following documentation was submitted:

- Photographs of the location of the video intercom and the information sign for video surveillance, as well as the field of vision that would be reached when someone activates it by calling.
- A responsible declaration signed on 09/05/2023 stating that the video surveillance camera installed inside the building of the Community of Property Owners ***COMMUNITY.1 is fictitious.
- Invoice No. XXXX issued on 20/02/2023 by (...) in the name of the Community of Neighbors ***COMMUNITY.1. The document states the following: “The video intercom has been replaced with a new one. The video intercom does not record images and only turns on if the button is pressed from the street panel, and after 30 seconds it turns off and deactivates.”

THIRD: On 13/06/2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

Material Scope

Article 2 of the GDPR states the following:

"2. This Regulation does not apply to the processing of personal data:

(...)

c) carried out by a natural person in the course of purely personal or household activities."

In this regard, Recital 18 indicates that: "This Regulation does not apply to the processing of personal data by a natural person in the course of an exclusively personal or household activity and, therefore, without any connection to a professional or commercial activity. Personal or household activities may include correspondence and maintaining a directory of addresses, or activity on social networks and online activity conducted in the context of the aforementioned activities. However, this Regulation applies to controllers or processors that provide the means to process personal data related to such personal or household activities."

III

Data Minimization

Article 5.1.c) of the GDPR states the following:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video systems for the purpose of ensuring the safety of persons and property, as well as their facilities. However, capturing images of public spaces is only permitted to the extent that it is essential for the aforementioned purpose.

IV

Transparency of Personal Data Processing

Article 5 of the GDPR "Principles relating to processing" indicates that:

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"1. Personal data shall be:

a) processed lawfully, fairly and in a transparent manner in relation to the data subject ('lawfulness, fairness and transparency')."

This principle is further developed in Article 12 of the GDPR and, depending on whether the personal data is obtained from the data subject or not, the information that must be provided is listed in Articles 13 or 14 of the GDPR.

Regarding processing for the purposes of video surveillance, Article 22.4 of the LOPDGDD states that: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device."

V

Conclusion

The complainant raises two issues in their complaint against the complained Community. The first concerns the installation of a video intercom in the Community that excessively captures the public space and that would activate without a prior call, and the second concerns the presence of an outdated informational sign regarding the video surveillance area.

Regarding the first issue, the complainant provided several photographs and videos of what the video intercom captures on different dates in March, as they indicate. While it is true that the images show various passersby and vehicles circulating on the sidewalk and roadway of the street where the property is located, it is also true that the invoice presented by the complained Community states that the video intercom does not record images and only lights up for 30 seconds when the bell is rung. Therefore, it is not possible to record images, and the functions of the video intercom are limited to verifying the identity of the person calling, and consequently, the processing of personal data carried out through the video intercom is proportional, adequate, and necessary for that purpose; without the processing exceeding personal or household use.

Regarding the information provided by the sign indicating the video surveillance area, the complainant states that it mentions the repealed Organic Law 15/1999 on the Protection of Personal Data. In the photographs they provide of the informational sign, the aforementioned regulation is indeed mentioned.

However, considering the content of the responsible declaration submitted by the complained Community, which states that the camera installed inside the building's entrance is fictitious, it is presumed that there is no processing of

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personal data by said camera. In this regard, the lack of such processing nullifies the obligation to inform under Article 13 of the GDPR; it is not necessary to have an informational sign in the video surveillance area.

In any case, it should be noted that, according to the provisions of Article 69 of the LPACAP, the Administrations may require at any time that documentation proving compliance with the aforementioned requirements be provided, and the interested party must provide it. Thus, it is brought to the attention of the claimed Community that any indication brought to the knowledge of this authority that the installed camera is not fictitious may lead to the initiation of a new sanctioning procedure that may conclude, if proven, with the imposition of the corresponding administrative sanction.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS

***COMMUNITY.1 and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned

LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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